CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

FIRST SECTION

DECISION

Application no. 26241/05
by Solmaz SULEYMANOVA
against Azerbaijan

The European Court of Human Rights (First Section), sitting on 18 January 2007 as a Chamber composed of:

Mr C.L. ROZAKIS, *President,*
Mr L. LOUCAIDES,
Mrs F. TULKENS,
Mrs N. VAJIĆ,
Mr K. HAJIYEV,
Mr D. SPIELMANN,
Mr S.E. JEBENS, *judges,*

and Mr S. NIELSEN, *Section Regitrar*,

Having regard to the above application lodged on 20 June 2005,

Having regard to the decision to apply Article 29 § 3 of the Convention and examine the admissibility and merits of the case together.

Having deliberated, decides as follows:

THE FACTS

The applicant, Ms Solmaz Suleymanova, is an Azerbaijani national who was born in 1950 and lives in Baku.

The facts of the case, as submitted by the applicant, may be summarised as follows.

The applicant was one of the three founders of a public association called *International Organisation for Legal Research* (*Beynəlxalq Hüquqi Tədqiqatlar Təşkilatı*).

On 14 June 2001 the founders filed a request for the association's state registration with the Ministry of Justice (hereinafter "the Ministry"), the

government authority responsible for the state registration of legal entities. In accordance with the domestic law, a non-governmental organisation acquired the status of a legal entity only upon its state registration by the Ministry.

On 23 September 2002, after more than a year from the date of filing of the registration request, the Ministry of Justice returned the registration documents to the founders without taking any action, i.e. without issuing a state registration certificate or an official refusal to register the association. The Ministry noted that the association's charter did not comply with the requirements for the contents of a charter as set out in the domestic law.

The founders redrafted the charter in line with the Ministry's comments and on 9 December 2003 re-applied for the state registration submitting a new version of the charter. They did not receive any reply from the Ministry to this second registration request.

In February 2003 one of the founders filed a lawsuit, complaining that the Ministry "evaded" registering their organisation and asking the court to oblige the Ministry to register it. On 27 February 2003 the Yasamal District Court dismissed the founders' claim, finding nothing unlawful in the actions of the Ministry. The court found that the association's charter had not been drafted in accordance with the requirements of the domestic law.

On 23 July 2003 the Court of Appeal upheld the first-instance court's judgment. The founders filed a cassation appeal against this judgment and on 13 November 2003 the Supreme Court upheld the lower courts' judgments dismissing the founders' claim.

On 15 March 2006 the Ministry of Justice registered the association and issued the state registration certificate.

COMPLAINT

The applicant complained under Article 11 of the Convention that the failure by the Ministry of Justice to register the organisation in a timely manner constituted an interference with her freedom of association.

THE LAW

The Court notes that on 2 November 2006 Mr J. Suleymanov, one of the co-founders of the association, sent a letter on the applicant's behalf, informing the Court of the applicant's wish to withdraw the application due to the fact that their association had been registered by the Ministry of Justice. By a letter faxed to the Court on 4 December 2006, the applicant

confirmed that Mr. Suleymanov had been authorised by her to send the mentioned letter and confirmed her wish to withdraw the application.

In these circumstances, the Court finds that the applicant no longer intends to pursue her application before the Court within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, the Court finds no reasons of a general character, as defined in Article 37 § 1 *in fine*, which would require the examination of the application by virtue of that Article.

Accordingly, Article 29 § 3 of the Convention should no longer apply to the case and it should be struck out of the list.

For these reasons, the Court unanimously

Decides to strike the application out of its list of cases.

Søren NIELSEN
Registrar

Christos ROZAKIS
President